



State of Wisconsin
2025 - 2026 LEGISLATURE

LRB-0547/1

ARG:cjs

2025 ASSEMBLY BILL 1058

February 26, 2026 - Introduced by Representatives SNODGRASS, ARNEY, MIRESE, PALMERI, PRADO, SINICKI, STUBBS, TAYLOR and STROUD, cosponsored by Senators DRAKE and WIRCH. Referred to Committee on Financial Institutions.

1 **AN ACT** *to amend* 704.085 (1) (a); *to create* 704.085 (1) (c) of the statutes;
2 **relating to:** access to prospective tenants' credit scores and consumer credit
3 reports.

Analysis by the Legislative Reference Bureau

Under current law, a landlord may require a prospective tenant to pay the landlord's actual cost, up to \$25, to obtain a consumer credit report on the prospective tenant from a consumer credit reporting agency that compiles and maintains files on consumers on a nationwide basis. The landlord must notify the prospective tenant of the charge before requesting the consumer credit report, and must provide a copy of the report to the prospective tenant.

Under this bill, a landlord may not require that a prospective tenant allow the landlord to obtain access to information regarding the prospective tenant's credit score or consumer credit report regarding the prospective tenant. A landlord shall inform a prospective tenant that the tenant has the right to decline to allow the landlord access to information regarding the prospective tenant's credit score and consumer credit report, and if the prospective tenant declines to provide access to the information, the landlord shall provide to the prospective tenant an alternative method of screening the prospective tenant's ability to pay future rent.

ASSEMBLY BILL 1058

SECTION 1

The people of the state of Wisconsin, represented in senate and assembly, do enact as follows:

SECTION 1. 704.085 (1) (a) of the statutes is amended to read:

704.085 (1) (a) Except as provided under ~~par. (b)~~ pars. (b) and (c), a landlord may require a prospective tenant to pay the landlord's actual cost, up to \$25, to obtain a consumer credit report on the prospective tenant from a consumer credit reporting agency that compiles and maintains files on consumers on a nationwide basis. The landlord shall notify the prospective tenant of the charge before requesting the consumer credit report, and shall provide the prospective tenant with a copy of the report.

SECTION 2. 704.085 (1) (c) of the statutes is created to read:

704.085 (1) (c) A landlord may not require that a prospective tenant allow the landlord to obtain access to information regarding the prospective tenant's credit score or consumer credit report regarding the prospective tenant. A landlord shall inform a prospective tenant that the tenant has the right to decline to allow the landlord access to information regarding the prospective tenant's credit score and consumer credit report, and if the prospective tenant declines to provide access to the information, the landlord shall provide to the prospective tenant an alternative method of screening the prospective tenant's ability to pay future rent.

(END)